

Court No. - 3

Case :- WRIT - C No. - 16043 of 2022

Petitioner :- Rajesh Kumar Shukla

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Chandra Prakash Kushwaha

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, and Shri Gaurav Singh, learned counsel for the respondent nos.3 to 5.

2. This writ petition has been filed praying for the following reliefs :

"I) Issue a writ, order or direction in the nature of certiorari to quash the demand notice dated 29.4.2022 issued by respondent no. 5 and order dated 26.3.2019 passed by respondent no. 4 (Annexure No. 6 and 4 respectively to the writ petition).

II) Issue a writ order or direction in the nature of mandamus directing the respondents not to recover any amount in pursuance of the impugned notice."

3. Learned counsel for the respondent nos.3 to 5/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.5 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be

decided by the respondent no.5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 4.7.2022

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